



Notification Waiver Determination

MA Financial Group (Redcape Fund) – The Arthouse Hotel

Acquisition	Redcape Hotel Group Pty Ltd (Redcape Fund), a part of MA Financial Group Limited (MA Financial Group), applied for a notification waiver in respect of its proposed acquisition of 100% of the interest in the lease over the land and buildings, 6 gaming machine licences, goodwill, plant and equipment, business name and domain name of The Arthouse Hotel, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	20 June 2026

Parties to the Acquisition	MA Financial Group is an ASX-listed global alternative asset manager specialising in private credit, real estate, and hospitality based in Sydney, NSW. The Redcape Fund is part of the MA Financial Group. The Redcape Fund portfolio owns and operates 37 community pubs and hotels in New South Wales, Queensland and Victoria. The target, The Arthouse Hotel, is a community pub and hotel offering food, beverage, gambling and entertainment, which is located in the Sydney Central Business District, New South Wales. MA Financial Group has interests in four hospitality venues (Criterion Hotel, Frisco Hotel, Kinselas Hotel and Courthouse Hotel) in metropolitan Sydney which also offer alcoholic beverages for consumption on the premises, food services, gaming services and entertainment.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: there is a small horizontal overlap between MA Financial Group and The Arthouse Hotel based on the number of premises in the supply of on-premises hospitality products and services (including liquor for on-site consumption, dining and gaming) in metropolitan Sydney

	b. there are alternative suppliers of on-premises liquor, dining, and gaming services in metropolitan Sydney. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**